

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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TENTATIVE RULINGS

June 15, 2026

	Case Name	Tentative
101	2023-01355797 Arie vs. Ford Motor Company	Motion for Summary Judgment and/or Adjudication No tentative issued.
102	2024-01388052 Stachel vs. Ford Motor Company	Motion for Summary Judgment and/or Adjudication The Court denies Defendant Ford Motor Company's Motion for summary judgment or alternatively adjudication of the three remaining claims in Plaintiff Kevin Stachel's First Amended Complaint (FAC). <u>Reply Separate Statement</u> Defendant's reply includes a separate statement "response". California Rules of Court, rule 3.1350 does not contemplate a reply separate statement. Defendants did not obtain prior permission from the Court to file the additional separate statement. (See ROA 170.) Accordingly, the document was not considered. <u>Evidentiary Objections</u> Defendant objects to the additional separate statement of facts. Objection nos. 1-29 are overruled. To preserve an objection to evidence, the party must object to the evidence itself rather than merely to separate statements of fact or to procedural aspects such as a separate statement in opposition to summary judgment. (See <i>e.g. Hodjat v. State Farm Mutual Automobile Ins. Co.</i> (2012) 211 Cal.App.4th 1, 8; Rule of Court 3.1354(b).) The Court overrules each objection to Counsel Yu and Plaintiff's declarations. The Court notes that Defendant uses the same type of repair history documents introduced through its attorneys, without authentication or a business records exception delineated. (See Liu, Esq. Decl., ¶16, Ex. 5: "Attached hereto as Exhibit 5 is a true and correct copy of the Standard Claims List reflecting repairs to Plaintiff's FMC_STACHEL000012-000015.") Defendant does not argue that the records are not what Plaintiff purports them be from the authorized dealership or that it did not receive them in discovery. The Court considers both sides records from the dealership of the vehicle's repair history. Defendant objects to evidence of post-warranty repairs as irrelevant. But they are relevant to show outstanding nonconformities at the time the warranty ended. <u>Legal Standard</u> "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (<i>Ibid.</i>) "A

prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Plaintiff's first cause of action is brought under California Civil Code section 1793.2(d)(2), which states, in pertinent part, as follows:

"If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B)."

(Civ. Code § 1793.2(d)(2).)

The courts take a broad and expansive view as to what constitutes a qualifying repair attempt under section 1793.2(d)(2):

... [T]he only affirmative step the Act imposes on consumers is to 'permit[] the manufacturer a reasonable *opportunity* to repair the vehicle.' [] Whether or not the manufacturer's agents choose to take advantage of the opportunity, or are unable despite that opportunity to isolate and make an effort to repair the problem, are matters for which the consumer is not responsible."

(*Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103–1104 (emphasis in original), "There was sufficient evidence to support the conclusion Oregel satisfied the presentation element by, on six different occasions, bringing the car in and requesting that Ron Baker repair the oil leak.")

Defendant argues that Plaintiff never presented the vehicle for repair of an issue under warranty on more than one occasion. (Separate Statement of Undisputed Fact (SSUF) 2-4, 7-16.)

But the Court finds that Plaintiff has shown triable issues of material fact in this regard. (See Additional Disputed Facts (ADF) 4-30.)

Under California law, repairs performed pursuant to a recall count as repair opportunities under section 1793.2(d)(2). (See *Donlen v. Ford Motor Co.* (2013) 217 Cal. App. 4th 138, 141 (“The first warranty repair, in August of 2005 at 11,618 miles, occurred pursuant to a recall notice plaintiff received from Ford. The recall concerned the truck’s transmission.”))

On Reply, Defendant emphasizes that there must be two reports of nonconformities for the same issue. (See *Robertson v. Fleetwood Travel Trailers of Cal., Inc.* (2006) 144 Cal.App.4th 785, 799 (stating: “at a minimum there must be more than one opportunity to fix the nonconformity[.]” implying there must be at least two attempts to fix the same issue); *Donlen, supra*, 217 Cal.App.4th at p.152, (listing elements and stating the number of repair attempts must be related to the same nonconformity)).

But Plaintiff has shown that the same defect was at issue at least twice during the warranty period: both the June 4–7, 2018 and April 30 – May 4, 2020 visits involved engine oil leak issues. There were continuing issues with low and leaking oil after the warranty expired, raising an inference sufficient for summary judgment that the nonconformity was not repaired.

If Defendant takes issue with a repair being considered one to a nonconformity, this was not discussed in the Motion and no evidence was provided of the same. There is no defined “nonconformity” or evidence presented to show that the repairs were “independent” in the moving papers; or to show that oil leaking/low oil is not related to the nonconformity alleged in the FAC. (See FAC, ¶124.)

Thus, the Motion is denied as to the first cause of action/ Issue 1.

Plaintiff's second cause of action is brought under section 1793.2(b), which states as follows:

Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.

(Civ. Code § 1793.2(b).)

Thus, section 1793.2(b) can be violated either when a defendant (1) fails to commence repairs within a reasonable time, or (2) fails to conform the vehicle to warranty within 30 days (the “30-day rule”). (*Kirzhner v. Mercedes-Benz USA, LLC* (2020) 9 Cal. 5th 966, 984.

Defendant only addresses one of the two possible basis for this claim. (See FAC, ¶157.)

		Moreover, Plaintiff has shown a triable issue of material fact as to the length of time to repair the oil leak/low oil issue. (ADF 8, 14, 16, 17, 25, 26.) Thus, the Motion is denied as to the second cause of action/ Issue 2. Plaintiff's third cause of action is brought under Section § 1793.2(a)(3). This statute requires Defendant to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code § 1793.2(a)(3).) Defendant argues that Plaintiff cannot establish his third cause of action for the alleged violation of Civil Code § 1793.2(a)(3) because Plaintiff has no evidence that Ford failed to make available to authorized service and repair facilities sufficient service literature and replacement parts. The Court finds that Defendant has not met its moving burden. It is not enough for defendant to show merely that plaintiff "has no evidence" on a key element of plaintiff's claim. Defendant must also produce evidence showing plaintiff <i>cannot reasonably obtain</i> evidence to support that claim. (<i>Gaggero v. Yura</i> (2003) 108 Cal.App.4th 884, 891; <i>Zoran Corp. v. Chen</i> (2010) 185 Cal.App.4th 799, 808.) Defendant does not satisfy its burden of proof by producing discovery responses that do not exclude the possibility that plaintiffs may possess or <i>may reasonably obtain</i> evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) A plaintiff's unawareness of facts to support a claim does not necessarily show the claim "cannot be established" where those facts are not likely to have been known to plaintiff. (<i>Villa v. McFerren</i> (1995) 35 CA4th 733, 749.) Thus, the Motion is denied as to the third cause of action/ Issue 3. Defendant is ordered to serve notice.
104	2021-01204953 Yang vs. Evan Paul Motorcars	Motion to Be Relieved as Counsel of Record Before the Court is Troy Schell, Esq., John Nuelle, Esq., and Schell Nuelle LLP's Motion to be relieved as counsel for Defendant Evan Paul EA Auto Leasing LLC. There is no proposed order. The relevant rule of court says that the proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Ct., Rule 3.1362(e).) Counsel is ordered to file a proposed order, filled out completely, including all future hearing dates, and serve it on Plaintiff's Counsel and Defendant at least 16 Court days prior to the continued hearing date.

		The Court continues the hearing on this Motion to August 31, 2026 at 2:00 p.m. in C27 to be heard concurrently with Defense Counsel's other pending Motion to be relieved. The Court also notes that it appears the second Motion has no proposed order either. The Order to Show Cause re: Monetary Sanctions and Trial Setting Conference set for July 27, 2026 are advanced and continued to August 31, 2026 at 2:00 p.m. in C27. Defense Counsel is ordered to serve notice of the aforementioned ruling and continued hearing dates.
105	2023-01351595 Lenin vs. STC Gardenwalk, LLC	Motion for Continuance of Trial The motion of Defendant, Cross-Complainant, and Cross-Defendant Integrated Asset Management Group, LLC, for an order continuing trial, or in the alternative staying this action, is denied in part and granted in part. The request to continue this matter is denied. The request to stay this action while the related criminal matter is pending is granted. The Court vacates the current trial and MSC dates of October 26, 2026 and September 25, 2026, respectively. The Court sets a status conference for February 22, 2027 at 10:00 a.m. in Department C27. Given the aforementioned stay, the motions to strike set for July 27, 2026 (ROA 247) and September 14, 2026 (ROA 267), respectively, are taken off calendar. Moving party is ordered to give notice.
106	2026-01544923 Comia vs. Eagle Law Corp	Motion to Compel Arbitration Defendants Eagle Law Corp.'s and Donald M. Baker's motion to compel arbitration of Plaintiff's claims is granted. On 9/8/23, Plaintiff and Defendants executed a retainer agreement which included the following clause: EAGLE does not carry errors and omissions insurance. In the event of any dispute between the parties arising out of or relating to this retainer agreement, or to the professional services rendered by this firm, any attorneys or personnel, including but not limited to claims for legal malpractice, any such claims shall be resolved by binding arbitration conducted under the Rules of the American Arbitration Association before one arbitrator. Each side shall bear his or her or its attorney's fees and costs, and one half of the charges of the arbitrator. It is agreed that the arbitration will be conducted in Orange County, California. (Defendants' Ex. A.) Plaintiff does not dispute that she signed the retainer agreement. Contrary to Plaintiff's argument, this agreement encompasses Plaintiff's malpractice claims that are pled in her Complaint. (See <i>Powers v. Dickson, Carlson & Campillo</i> (1997) 54 Cal.App.4th 1102, 1113-1114.)

Plaintiff notes that California Rule of Professional Conduct 1.8.8 prohibits an attorney from making "an agreement prospectively limiting the lawyer's liability to a client for malpractice" unless the client is "independently represented in making the agreement." But the arbitration agreement does not limit Defendant's liability; rather, it designates arbitration as the forum in which to resolve the issue of Defendant's liability. This does not render the arbitration agreement unenforceable.

Plaintiff also argues that because Defendant Barker substituted in as counsel on May 25, 2024, and was never a party to the retainer agreement between Plaintiff and Eagle, he lacks standing to enforce the arbitration clause.

Plaintiff alleges in her Complaint that Barker was an agent of Defendant Eagle Law Corp. (See Complaint, ¶¶ 3, 4.) Therefore, Defendant Barker has standing to enforce the arbitration agreement. (See *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614 ("when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement, the defendant may enforce the agreement even though the defendant is not a party thereto.").)

Unconscionability

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. (Civ. Code §1670.5.) Whether a provision is unconscionable is a question of law. (Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal. App. 4th 846, 851.)

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal. App. 4th 167, 174-75.)

Plaintiff argues that the agreement is unconscionable because (1) no advisement regarding independent counsel was provided, (2) the agreement was presented as a non-negotiable intake form, and (3) the clause imposes cost-shifting burdens not present in court proceedings.

Plaintiff's claimed failure to understand what she was agreeing to is not a defense to enforcement. (See *Bolanos v. Khalatian* (1991) 231 CA3d 1586, 1590 ([w]hen a person with the capacity of reading and understanding an instrument signs it, he may not, in the absence of fraud, coercion or excusable neglect, avoid its terms on the ground he failed to read it before signing it.").)

There is no indication that Plaintiff lacks capacity to read and sign an agreement such as this. Defendants state in their reply brief that Plaintiff answered interrogatories stating that she had bachelor's degrees in International Relations, Communications and a Master's in Counseling Psychology.

Additionally, Plaintiff argues that because the agreement is a contract of adhesion, it is procedurally unconscionable. Contracts of adhesion are not per se unconscionable. (See *Powers v. Dickson, Carlson & Campillo* (1997) 54 Cal.App.4th 1102, 1110.)

		Plaintiff also contends that the agreement is substantively unconscionable because it requires each party to "bear...one half of the charges of the arbitrator," and she cannot afford to bear one-half of AAA arbitration fees. (Comia Decl., ¶ 12.) She cites to <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, to support her argument that this renders the agreement substantively unconscionable and unenforceable. <i>Armendariz</i> does not apply here as its holding on the payment of fees is limited to employment cases for public policy reasons: "When an employer imposes mandatory arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any <i>type</i> of expense that the employee would not be required to bear if he or she were free to bring the action in court. This rule will ensure that employees bringing FEHA claims will not be deterred by costs." (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 110–111.) In the underlying case, Plaintiff agreed to a retainer fee of \$5,500.00 and an attorney rate of \$400/hour. (Motion, Ex. A.) Furthermore, Defendant Barker declares in reply that throughout his conversations with Plaintiff in 2024 and 2025, he inquired about Plaintiff's financial condition and status for the purpose of evaluating the amount of any punitive damages award to which Plaintiff may have been subject to in the underlying case. Plaintiff informed him that as of 2024/2025, Plaintiff was earning approximately \$50,000.00 per year via employment, she received \$50,000 per year in child support, she did not pay for childcare, rent or utilities, and all insurance costs for her child was paid for by the child's father. (Baker Decl., ¶ 1.) As it currently stands, Plaintiff has not shown that her ½ of the arbitration fees (which are generally significantly less than the costs of litigating in court) would preclude her access to the arbitration forum. (See <i>Armendariz, supra</i>, 24 Cal.4th at 110–111.) Therefore, because Plaintiff has not shown that the arbitration agreement is both procedurally and substantively unconscionable, the motion is granted. Defendants motion includes a request for sanctions in the motion at the end of the memorandum, pursuant to Code Civ. Proc., § 127.5. There is no § 127.5. This does not exist. Defendants likely mean Code Civ. Proc., § 128.5. Sanctions under § 128.5 are not warranted here; the Court does not find that Plaintiff's Complaint is frivolous or was filed in bad faith. Moreover, Defendants did not provide the 21-day notice as is required. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The Court further notes that Defendant Julie C. Lim was not a moving party to this motion to compel arbitration. Thus, the action against Defendant Lim is stayed as well. The Demurrer filed by Defendant Lim currently scheduled for August 3, 2026 is vacated. Additionally, the case management conference set fort July 13, 2026 is vacated. The Court sets a hearing re: status of arbitration on July 12, 2027 at 10:00 a.m. in Dept. C27. Moving parties are ordered to give notice.
108	2025-01462176	1. Demurrer to Amended Complaint 2. Case Management Conference

AIC Owner, LLC vs. 8K Productions, LLC	The Demurrer to the First Amended Complaint brought by Defendant Philip Braun is OVERRULED, in its entirety. Initially, while the First Cause of Action confusingly includes <i>all</i> background allegations – including an allegation which identifies Defendant Philip Braun as an individual conducting business in the County of Orange (§4 of FAC) – the claim nonetheless makes clear that it is asserted solely against Defendant 8K Productions, LLC. (See FAC.) Thus, to the extent Defendant Philip Braun intended to demur to this claim, the attempt is rendered MOOT. With respect to the Second Cause of Action for Breach of Guaranty, “[t]he standard elements of a claim for breach of contract are: ‘(1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damages to plaintiff therefrom.’” (<i>Wall Street Network, Ltd. v. New York Times Co.</i> (2008) 164 Cal.App.4th 1171, 1178.) Similarly, “[a] lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (<i>Gray1CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486.) Per the First Amended Complaint, Defendant Philip Braun executed a written Guaranty of Lease, wherein he guaranteed performance of the Lease executed by Defendants 8K Productions and Christopher Emery. (§18 of FAC and Exhibit 1 thereto.) The First Amended Complaint additionally alleges Plaintiff performed all or substantially all its obligations under the Lease; however, Defendants 8K Productions and Christopher Emery breached the Lease Agreement, by failing to pay all rent that was due and owing from December 2024 through to the end of the lease term. (§12-§13 of FAC.) The First Amended Complaint proceeds to allege that Defendant Philip Braun failed to cure the above-described default and, therefore, is in breach of the Guaranty. (§19 of FAC.) The above allegations are sufficient to state a claim for Breach of Guaranty. Within the demurrer, Defendant assert that additional allegations are necessary to show “how Braun breached any enforceable obligation presently due under that Guaranty” (Demurrer: 4:24-26); however, the First Amended Complaint clearly alleges a failure to pay the amounts due and owing under the Lease. (See §12-§13 and §19 of FAC.) Thereafter, Defendant asserts the Complaint fails to allege the specific sums for which Guarantor is liable (Demurrer: 5:5-7); however, the Complaint alleges: “The amount of Base Rent and Additional Rent owed for the period from December 1, 2024 through May 21, 2025 is the sum of \$33,000.00, subject to proof at time of trial. They also caused additional damages to the Premises and delayed Plaintiff’s ability to lease the Premises such that total damages are estimated to be \$55,000.00, subject to proof at the time of trial.” (§20 of FAC.) While Defendant clearly takes the position that additional facts are necessary, Defendant cites no authority which requires more in order to plead a breach of contract claim. At best, Defendant inexplicably offers a general citation to <i>Jones v. Grewe</i> (1987) 189 Cal.App.3d 950 (See Demurrer: 6:20-21), an action which sounds in <i>negligence</i>. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793.)
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To the extent Defendant demurs on the basis the alleged damages are uncertain, this portion of the demurrer is unpersuasive.

While it is true the Complaint alleges rental damages through to May 30, 2025, in the amount of \$33,000.00, while also simultaneously asserting lost rental damages estimated in the amount of \$55,000.00 (¶12, ¶15 and ¶20 of FAC), these allegations are not so uncertain, as to prevent a response.

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Additionally, “[d]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.)

Based on the above, the demurrer to the Second Cause of Action is OVERRULED.

With respect to the Third Cause of Action, “[t]he common counts are sufficient to state a cause of action upon either a contract implied in fact [citations] or a contract implied in law.” (*Kawasho Internat., U.S.A. Inc. v. Lakewood Pipe Service, Inc.* (1983) 152 Cal.App.3d 785, 793.) “A common count is proper whenever the plaintiff claims a sum of money due, either as an indebtedness in a sum certain, or for the reasonable value of services, goods, etc., furnished. It makes no difference in such a case that the proof shows the original transaction to be an express contract, a contract implied in fact, or a quasi-contract.” (*Ibid.*)

Similarly, “[i]n California, it has long been settled the allegation of claims using common counts is good against special or general demurrers.” (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460.) “The only essential allegations of a common count are ‘(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.’” (*Ibid.*)

Here, the Third Cause of Action incorporates all prior allegations and asserts: “There is due, owing and unpaid, from Defendants to Plaintiffs in the amount of approximately \$55,000.00 for outstanding rental damages and damages to the Premises, subject to proof at the time of trial.” (¶23 of FAC.)

Based on the above, these allegations are sufficient to state a common count.

While Defendant suggests the basis for the common count must be wholly separate from the alleged guaranty, Defendant cites no authority to support this assertion and, consequently, the assertion may be disregarded.

At most, Defendant cites *McBride v. Boughton* (2004) 123 Cal.App.4th 379, apparently in reliance on the following principle: “When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable.” (*Id.* at p. 394.)

As the claim for Breach of Guaranty survives demurrer, the above authority does not support the demurrer to the Third Cause of Action.

Defendant shall file his Answer to the First Amended Complaint within 10 days.

		The case management conference is continued to November 16, 2026 at 10:00 a.m. in Department C27. Plaintiff is ordered to give notice.
109	2025-01532667 NeueHealth Advantage ACO LLC vs. MD Health Inc	1. Demurrer to Complaint 2. Case Management Conference The demurrer of Defendants MD Health, Inc., and MD Partners, Inc. to all three causes of action in Plaintiff NeueHealth Advantage ACO, LLC’s complaint is SUSTAINED with 15 days leave to amend. <u>Discussion.</u> Defendants demur generally to all three causes of action in the complaint, which are for breach of contract, breach of the implied covenant of good faith and fair dealing, and declaratory relief. Plaintiff opposes the demurrer. Moving defendants contend that the first two causes of action for breach of contract and breach of the implied covenant of good faith and fair dealing fail to state any claim against them because neither is a party to the agreement alleged in the complaint, which is between Plaintiff and non-party MD Partners ACO. They further contend that Plaintiff does not set forth any factual allegations by which liability may be imposed on them as non-signatories to the agreement, e.g., alter ego theory, agency, or estoppel. In fact, the agreement attached to the complaint as Exhibit A is between Plaintiff NeueHealth Advantage ACO, LLC (under its former name, Physicians Plus ACO, LLC) and non-party MD Partners ACO and states that it is effective as of May 10, 2022. In addition, Plaintiff alleges in several places in the complaint that the contract is between it and non-party MD Partners ACO. (See, e.g., paragraphs 15, 28, and 34, which are in the introductory portion of the complaint, the first cause of action, and the second cause of action, respectively.) Plaintiff does not allege that non-party MD Partners ACO was acting as an agent on behalf of a principal when it entered into the agreement. In the first cause of action, Plaintiff alleges that non-party MD Partners ACO breached the agreement by failing to provide a financial guarantee in a form and substance satisfactory to Plaintiff as required by the agreement and that Plaintiff was damaged as a result. (Complaint, ¶¶ 30 and 31.) It then alleges that the moving defendants “are liable for the contractual obligations and duties of MD Partners ACO under the agreement.” (Complaint, ¶ 32.) There are absolutely no facts in the complaint to support Plaintiff’s conclusion that moving defendants are liable to it for the non-party’s breach of contract. As pointed out in the moving papers, the introductory portion of the complaint contains only boilerplate and factually devoid allegations – made on information and belief -- that each named defendant is the agent, alter ego, servant, or employee of each of the other defendants and acting within the scope of the agency or employment. (Complaint, ¶ 6.) The introductory portion of the complaint also contains boilerplate allegations – again based on information and belief – that the named defendants, non-party MD Partners ACO, and fictitiously named defendants are the alter egos of each other. (Complaint, ¶¶ 7.) These allegations are insufficient to impose liability against the named defendants for a breach of the agreement by non-party MF Partners ACO.

In the second cause of action, Plaintiff alleges that non-party MD Partners ACO breached the covenant of good faith and fair dealing implicit in the agreement with Plaintiff and that Plaintiff was injured as a result. (Complaint, ¶¶ 36 and 37.) As with the first cause of action, Plaintiff alleges that the moving defendants “are liable for the contractual allegations and duties of [non-party] MD Partners ACO. (Complaint, ¶ 38.) Again, there are no facts in the complaint to support this conclusion.

The third cause of action is for declaratory relief, and the moving defendants contend that it is defective because it is derivative of the first two causes of action and seeks a declaration of rights to which Plaintiff is not legally entitled, citing Childhelp, Inc. v. City of Los Angeles (2023) 91 Cal.App.5th 225, 236. Plaintiff disagrees, citing the same case for the proposition that declaratory relief is appropriate if the complaint sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties and requests that the rights and duties be adjudged.

In fact, Childhelp, Inc. v. City of Los Angeles, *supra*, 91 Cal.App.5th 225 states the following at pp. 235-236:

Section 1060 of the Code of Civil Procedure provides: “Any person interested under a written instrument ... or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument” To allege facts sufficient to state a cause of action for declaratory relief, the plaintiff must allege “two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.’ ” [Citation.]

“It is the general rule that in an action for declaratory relief the complaint is sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties ... and requests that the rights and duties be adjudged. [Citation.] If these requirements are met, the court must declare the rights of the parties whether or not the facts alleged establish that the plaintiff is entitled to a favorable declaration.” [Citations.] “[A] general demurrer is usually not an appropriate method for testing the merits of a declaratory relief action, because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff’s interest.” [Citation.]

Nevertheless, “a trial court may properly sustain a general demurrer to a declaratory relief action without leave to amend when ... the controversy presented can be determined as a matter of law.” [Citations.] Allowing the plaintiff to proceed on a cause of action for declaratory relief “can often lead to a waste of court and litigant resources when it is clear the plaintiff seeks a declaration of rights to which he or she is not legally entitled. It would seem unnecessary to reverse a judgment sustaining a demurrer simply because an ‘actual controversy’ has been alleged. [Citation.] Although the sustaining of the demurrer might be technically incorrect, reversing ‘would merely provoke further appellate recourse since the record discloses that the trial court dismissed the case on the merits and the legal issues are clearly presented by the pleadings.’ ” [Citation.]

		Here, in the third cause of action, Plaintiff alleges a controversy has arisen between it and the named defendants in relation to their respective legal rights and duties with respect to the agreement. (Complaint, ¶ 40.) It alleges that it seeks a judicial determination of the rights and duties of the parties with respect to the agreement and a declaration that one or both of the named defendants is obligated to compensate Plaintiff for the financial guarantee requirements under the agreement. (Complaint, ¶ 42.) Given these allegations, moving defendants are correct to the extent that they contend that the cause of action is derivative of the cause of action for breach of contract. Specifically, the first cause of action for breach of contract is defective because the defendants are not parties to the contract and Plaintiff has not pled any facts or theories showing that they can be held liable for the non-party's alleged breach. As non-parties to the agreement, they have no interests or obligations under that agreement and Plaintiff has not shown otherwise. Declaratory relief would not be appropriate as a matter of law. Thus, the Court sustains the demurrer to all three causes of action with 15 days leave to amend. The case management conference is continued to November 16, 2026 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
110	2025-01496315 Nguyen vs. Able Financial Corp.	1. Motion to Compel Arbitration 2. Case Management Conference Defendants Nathan Nguyen's and Thuy Dao's motion to compel arbitration of Plaintiff Stacey Nguyen's claims against them is granted. The parties do not dispute the existence of an arbitration agreement that Plaintiff signed as part of the Business Purchase Agreement dated 2/1/24. This agreement is attached to both Plaintiff's initial Complaint and her First Amended Complaint as Ex. D. and states in part: 42. ARBITRATION OF DISPUTES A. The Parties agree that any dispute or claim in Law or equity arising between them out of this Agreement or any resulting transaction, which is not settled through mediation, shall be decided by neutral, binding arbitration... While the agreement was technically between Plaintiff and 1988 TL Group, Plaintiff alleges that the moving Defendants were the "sole owners" and "alter egos" of the seller. (FAC, ¶¶ 4-10.) The court in <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 614 held that "when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement, the defendant may enforce the agreement even though the defendant is not a party thereto." Based on this, Defendants have standing to compel arbitration. Plaintiff argues in opposition that her fraud and deceit causes of action are not related to the purchase agreement and thus not arbitrable. The Court disagrees. Plaintiff's fraud claim is based on alleged misrepresentations in connection with the sale (e.g., that the

		business was properly permitted and profitable), and Plaintiff's negligence claim is based on Defendants' alleged duties to disclose relevant information regarding the business truthfully. (FAC, ¶¶ 41-44, 49.) These claims are encompassed by the arbitration agreement Plaintiff additionally argues that because the other two defendants, Able Financial Corp. and Thea Mai, are not parties to the arbitration agreement and cannot be compelled to arbitrate, there is a risk of inconsistent or conflicting rulings. Code Civ. Proc., § 1281.2(d) provides in part that if "a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) <u>may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding</u>; or (4) may stay arbitration pending the outcome of the court action or special proceeding." (Emphasis added.) The Broker Defendants filed a notice of non-opposition to the motion, stating that they do not oppose the Court staying the case while arbitration between Plaintiff and the Seller Defendants takes place. Plaintiff does not make any other arguments in her opposition. There is no showing that the agreement is unconscionable or otherwise unenforceable. Based on the foregoing, the motion to compel arbitration is granted as to Defendants Nathan Nguyen and Thuy Dao. This case is hereby stayed as to the claims between Plaintiff and Defendants Able Financial Corp. and Thea Mai. The case management conference is vacated. The Court sets a status conference on June 28, 2027 at 10:00 a.m. in Dept. C27. Defendants Nathan Nguyen and Thuy Dao shall give notice.
111	2025-01534663 Beyene vs. Pavia	1. Motion to Quash Service of Summons 2. Case Management Conference The motion and case management conference are continued to August 24, 2026 at 2:00 p.m. in Department C27.
112	2025-01515687 Horner vs. Kia America, Inc	1. Motion for Sanctions 2. Case Management Conference The motion of plaintiff Jeffrey Horner for an order imposing a monetary sanction of \$2500.00 against the attorney of record for Defendant Kia America, Inc., and compelling Defendant Kia America, Inc., to produce its lemon law policy and procedure manuals without a confidential designation is denied in its entirety. The request of Defendant for a monetary sanction of \$3350 against Plaintiff and Plaintiff's counsel is also denied.

		Plaintiff's objections to the declaration of attorney Jad Doudar are all overruled. The case management conference is continued to November 16, 2026 at 10:00 a.m. in Department C27. Defendant is ordered to give notice.
114	2025-01517526 Ahannavard vs. Contractors State License Boad	1. Demurrer - Other 2. Case Management Conference 3. Order to Show Cause re: Sanctions for Failure to File Case Management Statement Ruling issued on June 11, 2026.